

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”), by their respective undersigned counsel hereby submit this Joint Status Report in response to the Presiding Officer’s July 18, 2024 Order Granting Motion to Extend Time to Reply and in further support of the Parties’ June 28, 2024 Motion to Extend Expert and Other Deadlines.

I. The Current Schedule

1. The May 22, 2024 Scheduling Order set the following deadlines relevant to this Motion:

- July 19, 2024: Report of Complainant’s experts, if any, to be provided to Respondents.
- July 26, 2024: Respondents to identify rebuttal expert witnesses, if any.
- August 1, 2024: Last date to serve supplemental discovery requests.
- August 15, 2024: Respondents to provide Complainant with rebuttal experts’ reports, if any.
- August 22, 2024: Depositions of expert witnesses may begin.
- September 10, 2024: Close of discovery.
- October 11, 2024: Complainant’s Opening Brief, Proposed Findings of Fact, and Appendix.
- November 11, 2024: Respondents’ Opposition Brief, Proposed Findings of Fact, Appendix, and Response to Complainant’s Proposed Findings of Fact.

- November 26, 2024: Complainant's Reply to Respondents' Brief and Proposed Findings of Fact.

II. Parties' Discovery Efforts Since June 28, 2024

2. To date, Complainant has taken 6 depositions, including depositions of three OOCL witnesses located in Hong Kong, which have taken more than 40 hours to complete. The Parties also have 11 depositions of either current or former Party employees scheduled for July 22, July 23, July 24, July 25, July 26, July 27, July 30, July 31, August 1, August 5, and August 6.

3. In addition to the 17 scheduled depositions above, the Parties are still working to coordinate the depositions of 10-12 additional current or former employees of the Parties—as well as corporate designee witnesses—in the gaps set between current depositions and in the month of August.

4. The Parties are also working to coordinate the depositions of approximately 5 third-party witnesses within the same time frame. The parties anticipate that each of previously mentioned depositions will be lengthy.

5. Based upon the current schedule, even if the Parties are able to schedule a deposition for each weekday in August—which the parties are seeking to do as feasible—it would take the entire month of August to finish the current deponents, and perhaps longer if corporate designee depositions take more than one day to schedule.

6. As shown in the preceding paragraphs, the Parties have continued to engage in diligent efforts, but the volume of depositions currently being taken and scheduled to be taken in this case is such that, as a practical matter, there simply are not enough days remaining within the current deadlines for the Parties to complete depositions prior to the Parties being required to submit their respective expert report(s).

7. As noted, many of these depositions involve former employees of the Parties and non-U.S. individuals located abroad (with the attendant time zone difficulties), and although the undersigned counsel is actively coordinating with those former employees and individuals to streamline the scheduling and taking of these depositions, some may require subpoenas and the opportunity to respond to such subpoenas.

8. Therefore, good cause exists to grant the Parties' motion to amend the scheduling order.

III. Conclusion

9. Based on the foregoing, the Parties respectfully submit that a two-month extension of the remaining deadlines in the May 22, 2024 Scheduling Order is necessary to allow the Parties a fair opportunity to depose each other's respective fact witnesses. An extension of the expert deadlines will also allow the Parties to incorporate relevant information from upcoming depositions into their expert reports. The Parties will endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

10. The Parties therefore renew their previously-stated joint request for the following amended schedule:

- September 17, 2024: Report of Complainant's experts, if any, to be provided to Respondents.
- September 24, 2024: Respondents to identify rebuttal expert witnesses, if any.
- September 30, 2024: Last date to serve supplemental discovery requests.
- October 14, 2024: Respondents to provide Complainant with rebuttal experts' reports, if any.
- October 21, 2024: Depositions of expert witnesses may begin.
- November 10, 2024: Close of discovery.
- December 10, 2024: Complainant's Opening Brief, Proposed Findings of Fact, and Appendix.
- January 10, 2024: Respondents' Opposition Brief, Proposed Findings of Fact, Appendix, and Response to Complainant's Proposed Findings of Fact.

- January 26, 2024: Complainant's Reply to Respondents' Brief and Proposed Findings of Fact.

Dated: July 22, 2024

HUTH REYNOLDS LLP


 Karl C. Huth
 (212) 731-9333
 huth@huthreynolds.com
 Matthew J. Reynolds
 (646) 872-9353
 reynolds@huthreynolds.com
 Gregory A. Crapanzano II
 (917) 575-3440
 gcrapanzano@huthreynolds.com
 J. Lee Hill
 (405) 826-3226
 lhill@huthreynolds.com
 Jie Shi
 (615) 739-4956
 jshi@huthreynolds.com
 41 Cannon Court
 Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
 Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc.*

Respectfully submitted,

BLANK ROME LLP

/s/ Lauren B. Wilgus (with permission)
 Matthew J. Thomas
 1825 Eye Street N.W.
 Washington, DC 20006
 (202) 772-5971
 Matthew.Thomas@BlankRome.com

Keith B. Letourneau
 BLANK ROME LLP
 717 Texas Avenue, Suite 1400
 Houston, Texas 77002
 (713) 402-7640
 Keith.Letourneau@BlankRome.com

Emma C. Jones
 BLANK ROME LLP
 1825 Eye Street N.W.
 Washington, DC 20006
 (202) 420-2285
 Emma.Jones@BlankRome.com

Lauren B. Wilgus
 BLANK ROME LLP
 1271 Avenue of the Americas
 New York, NY 10020
 (212) 885-5348
 Lauren.Wilgus@BlankRome.com

JEFFREY/FENNEMAN LAW +
 STRATEGY, PLLC

Rebecca A. Fenneman
 Eric C. Jeffrey
 Jeffrey/Fenneman Law + Strategy, PLLC
 (202) 904-2301
 700 12th Street, NW Suite 700
 Washington, DC 20005
 RFenneman@JeffreyFenneman.com

EJeffrey@JeffreyFenneman.com

*Counsel for Respondents Orient Overseas
Container Line Limited and OOCL (Europe)
Limited*